

this Motion to Plaintiffs.

Ruling

This Motion is continued to April 15, 2026 at 9:00 a.m. Miller's counsel is ordered to file a proof of service, and a declaration explaining whether service was accomplished timely on Plaintiffs' counsel.

10. 9:00 AM CASE NUMBER: C22-01971

CASE NAME: CONSTANTINA MARQUEZ VS. KOHL'S DEPARTMENT STORES, INC.

***HEARING ON MOTION IN RE: FOR A *NUNC PRO TUNC* ORDER FOR LEAVE TO FILE X-COMPLAINT
(SET PER COURT ORDER FILED 12/2/2025)**

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Kohl's Department Stores, Inc., Lauren Crader's Application for a *Nunc Pro Tunc* Order for Leave to File Cross-Complaint.

Procedural Background

This matter pertains to an alleged slip and fall that occurred on September 18, 2020, at a Kohl's store located in Brentwood, California. Plaintiff filed her complaint on September 16, 2022. Defendants filed their answer on February 21, 2023.

On December 3, 2024, the Court scheduled the jury trial on the matter to begin on July 28, 2025. On June 9, 2025, the Court granted the Parties' joint stipulation to continue the trial date to March 16, 2026. On September 17, 2025, Defendants filed a substitution of attorney form indicating that they had changed counsel.

On October 29, 2025, new/current counsel for Defendants filed a Cross-Complaint against Kellermeyer Bergensons Services LLC ("KBS") for indemnity and contribution. The Cross-Complaint was accepted and filed by the Court.

Thereafter, on November 25, 2025, Defendants' counsel filed an *ex parte* application seeking a *nunc pro tunc* order for leave to file the cross-complaint which was already filed and accepted by the Court. The Court denied the *ex parte* application, instead setting the motion for a regularly scheduled hearing. The hearing was set for March 25, 2026. On January 30, 2026, the Court vacated the trial date, setting a trial setting conference for June 29, 2026. The order noted that the Parties were scheduled for mediation on May 1, 2026.

Legal Standard

The issue appears to relate to Defendants' failure to obtain leave to file the Cross-Complaint. When, as here, a defendant files a cross-complaint against someone other than plaintiff it is to be filed "before the court has set a date for trial." (Code Civ. Proc. § 428.50 (a)-(b).) If that party seeks to file a cross-complaint after a trial date has been set, that party "shall obtain leave of court...." (*Id.* at (c).) "Leave may be granted in the interest of justice at any time during the course of the action." (*Ibid.*)

Analysis

Initially, the Court notes that the Cross-Complaint was accepted by the Court and filed on October 29, 2025. As such, it is unclear why Defendants filed this motion to obtain permission to file a pleading which has already been accepted and filed. It appears that a motion to strike by the party objecting to the filing of the cross-complaint would be the appropriate action.

As to the request for a *nunc pro tunc* order, a “court can always correct a clerical, as distinguished from a judicial error which appears on the face of a decree by a *nunc pro tunc* order.” (*Estate of Eckstrom* (1960) 54 Cal.2d 540, 544.) “‘The function of a *nunc pro tunc* order is merely to correct the record of the judgment and not to alter the judgment actually rendered -- not to make an order now for then, but to enter now for then an order previously made. The question presented to the court on a hearing of a motion for a *nunc pro tunc* order is: What order was in fact made at the time by the trial judge?’” (*Ibid.* quoting *Smith v. Smith* (1952) 115 Cal.App.2d 92, 99.)

Here, there is no order that Defendant can point to that the Court can correct.

Cross-Defendant KBS argues in its opposition that the “court should act *nunc pro tunc* to correct this erroneous filing and forthwith strike Kohl’s cross-complaint.” (Opp. at 3:16-17.) Again, there is no prior order to which either party can point that the Court can ‘correct’ or modify. In addition, the Court notes that any request for affirmative relief made in an opposition is improper and will not be considered by the Court. “An application for an order is a motion.” (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent KBS believes the Cross-Complaint should be stricken, it is required to file a motion seeking such relief.

The Court will note that leave to file a cross-complaint is very liberally granted. In accordance with Code of Civil Procedure § 428.10(b), a party may file a cross-complaint asserting any cause of action “arising out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him.” As the California Supreme Court explained, under the governing provisions of that statute, “a named defendant is authorized to file a cross-complaint against any person, whether already a party to the action or not, from whom the named defendant seeks to obtain total or partial indemnity. Although the trial court retains authority to postpone the trial of the indemnity question if it believes such action is appropriate to avoid unduly complicating the plaintiff’s suit, *the court may not preclude the filing of such a cross-complaint altogether.*” (*Paragon Real Estate Group of San Francisco, Inc. v. Hansen* (2009) 178 Cal.App.4th 177, 183 quoting *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 584.)

In interpreting Code of Civil Procedure section 426.50, which pertains to applications for leave to file a cross-complaint, the First District Court of Appeal has held that a “motion to file a cross-complaint at any time during the course of the action **must be granted** unless bad faith of the moving party is demonstrated” and that factors “such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (*Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99.)

“‘Bad faith’ is defined as ‘[t]he opposite of good faith,’ generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some

duty or some contractual obligation, not prompted by honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will.” (*Silver Orgs.* 217 Cal.App.3d at 99 quoting *Pugh v. See’s Candies, Inc.* (1988) 203 Cal.App.3d 743, 764.) Section 426.50 “expressly disallows” denial of a motion on a mere showing of neglect, inadvertence, or oversight. (*Id.* at 101.)

“The principle is well settled in this state that a defendant may cross-complaint for a declaration of the duty of a cross-defendant to indemnify a cross-complainant in the event the latter is held liable to the plaintiff in the main action.” (*Brokate v. Hehr Mfg. Co.* (1966) 243 Cal.App.2d 133, 137-38.) Bringing an action for indemnity or contribution by cross-complaint promotes judicial efficiency and allows related evidence and matters of proof to be consolidated in a single proceeding. (*Valley Circle Estates v. VTN Consolidated, Inc.* (1983) 33 Cal.3d 604, 614-15.) As the California Supreme Court noted, “[overburdened] courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions.” (*Id.* at 615 quoting *Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261.) The Court has “consistently concluded that the cross-action procedure represents a ‘more orderly and expeditious resolution of the controversy’ in multiple party cases.” (*Ibid.*)

Conclusion

Defendants’ motion for a nunc pro tunc order is **denied** as moot. There is no order to ‘correct.’ The Cross-Complaint has already been accepted and filed.

11. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***HEARING ON MOTION IN RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25**
TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY’S MOTION FOR LEAVE TO FILE A
COMPLAINT IN INTERVENTION
FILED BY: DUFALL, SIOBHAN
TENTATIVE RULING:

Continued by the Court to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

12. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY**
FILED BY: JRT FREIGHT, LLC
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 12 and 13. Counsel Eliyahu Y. Kaplunovsky, who represents Defendants JRT Freight LLC and Luis Martinez (“Defendants”), filed a Motion to Be Relieved as Counsel for both Defendants. The Motion is **granted** as set forth herein.